

Cap. 6. For Redresse of Delays of Judgements.

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parliament, and there shall be a final accord taken what judgement ought to be given in this case, and according to this accord it shall be commanded to the judges before whom the plea did depend; that they shall proceed to give judgement without delay.

Before the making of this statute delay of judgements was forbidden both by the common law, and by acts of parliament. By the common law. 1. It is required, that *plena et celeris justitia fiat partibus*, &c. not *plena* alone, nor *celeris* alone, but both *plena et celeris*. All writs of *præcipe quod reddat*, are, *Quod juste et sine dilatione reddat*, &c. All judicial writs are *sine dilatione*, &c. 2. There did and yet doth lye a writ *de procedendo ad judicium*, when the justices or judges of any court of record, or not of record, delayed the party plaintiff or defendant, demandant or tenant, and would not give judgement: and thereupon an *alias plur'*, and an attachment, &c. doth lye. And the words of the writ be, *Quia redditio judicii loquelæ quæ est coram vobis*, &c. *de quadam transgressione eidem A. per præfat' B. illata, ut dicitur, diuturnam cepit dilationem ad grave damnum ipsius A. sicut ex querela sua accepimus, vobis præcipimus quod ad judicium inde reddendum cum ea celeritate quæ secundum legem et consuetudinem regni nostri procedas*, &c.

3. Likewise when justices or judges of any court of record, or not of record gave judgement, and delayed the party of his execution, the party grieved may have a writ *de executione judicii*; by which writ the justices or judges are commanded, *Quod executionem judicii nuper redditit*, &c. *de loquela quæ fuit*, &c. *per breve nostrum*, &c. *sine dilatione fieri fac'*. And thereupon an *alias, plur'* and attachment, &c. do lye.

4. By the meeting together upon adjournment of the cause out of the court, where the cause dependeth, &c. All the judges, &c. which now we call an exchequer chamber cause, warranted by the common law and ancient presidents before this statute: and the frequent use of this court of exchequer chamber hath been the cause that this court upon the act of 14 E. 3. hath been rarely put in ure.

5. By the kings writ comprehending *quod si difficultas aliqua interfit*, that the record should be certified into the parliament, and to adjourne the parties to be there at a certain day. *Si obscurum et difficile sit judicium, ponantur judicia in respect' usque magnam curiam*. An excellent record, whereof you may read in the parliament holden at Westminster the Tuesday after the translation of Becket, anno 14 E. 3.

Secondly, by acts of parliament. *Nulli vendemus, nulli negabimus, nec differemus justitiam vel rectum*.

That it shall not be commanded neither by the great-seale, nor by the little-seale, nor by letters, nor any other cause to delay right: and albeit such commandement come, &c. that by them the justices surcease not to do right in no manner. *Vide* 2 E. 3. cap. 8. 14 E. 3. cap. 14. 18 E. 3. stat. 3. 2 R. 2. a statute not in print, Rot. parl. nu. 51. whereby it is enacted, that no justice shall stay justice for any writ, letter of the great-seal or privy-seal, or other commandement whatsoever against the laws and statutes before

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that

Regist. 137. a.
F. N. B. 23. c.
And so upon counsels granted.

Regist. fo. 22.
F. N. B. 153. b.
&c. Cust. de
Norm. cap. 27.

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Diuturna dilatio.

Regist. fo. 18.
F. N. B. fo. 20. a.
&c.

See hereafter, ca. Exchequer and Exchequer Chamber.

2 E. 3. fo. 7.
Ellys Callers case. Braet. lib. r.
ca. 2. rot. parl.
14 E. 3. nu. ult.
Sir Geoff. Stanton's case.

Mag. Cart.
ca. 29.

2 E. 3. fo. 3.
per Aldham.
14 E. 3. jour. 24.
18 E. 3. 47. 57.
31 E. 3. an. 161.
39 E. 3. 37.
11 H. 4. 5. 76.
9 H. 6. 58. b.
5 E. 4. 132.
Fortesc. cap. 6.
F. N. B. 240. d.

• Regist. fo.
F.N.B. 240. d.

that time made, Rot. par. 2 H. 4. nu. 64. anno 5 H. 4. nu. 33. all which are declaratory of the common law. * And upon the said act of 2 E. 3. a writ is framed, directed to the justices, by which they are commanded, *Quod ad justitiam partibus, &c. faciend' virtute alicujus mandati de magno sigillo, et parvo sigillo vobis direct' seu dirigend' nullatenus superseatis, &c.* And thus much for the common law and acts of parliament.

This statute of 14 E. 3. cap. 5. consisteth of two generall parts, viz. the preamble and the body of the act. In the preamble three things are to be observed. 1. That (notwithstanding the provision of the common law) mischiefs do happen by delay of judgements. 2. It enumerateth in what courts these delays do happen, viz. in the chancery, in the kings bench, the common bench, and the exchequer, the justices assigned, and other justices to hear and determine deputed. 3. It declareth how these delays have grown, viz. sometime for difficulty of the matter in law, sometime in diversity of opinion of the judges, and sometimes for some other cause, that is, by commandements, letters, or messages of the king or great men, &c. In the body of the act we have collected many observations. 1. That at every parliament there shall be chosen a prelate, two earls, and two barons, (for one bishop, two earles, and two barons.) viz. At this parliament were chosen, 1. John Stratford archbishop of Canterbury, (a man famous for learning, loyalty, and vertuous living.) 2. Rich. Fitzalan earle of Arundel, a man of great wisdom, prowes, and integrity. 3. William Clynton earle of Huntingdon, and admiral of England, a man lately before advanced for his singular valour, wisdom, and vertue. 4. The lord Wake of Lidel. and 5. Ralph lord Bassett of Drayton, two of the most renowned barons of England. *Quos omnes honoris causa nomino.*

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2. This act doth appoint that the prelate, two earls, and two barons are to have a commission and power of the king under the great seal (and none of them can be absent) which commission is to endure untill the next parliament.

3. This commission and power consisteth on ten parts. 1. *Ad audiendum*, to hear the petition delivered to them, the complaints of those that will complain to them of such delays or grievances made. 2. *Ad venire faciend'* to do come before them at Westminster, or elsewhere, the tenor of the records and proceses of such judgements so delayed; and this is to be done by the kings writ of *certiorari*. 3. *Ad venire faciend'*, to cause the same justices to come before them. 4. *Ad audiend' suas rationes et causas talium dilationum*, to hear their reasons and causes of such delays which ought to be entred of record. 5. Which causes and reasons so heard, *ad procedendum*, to proceed to make a good accord. 6. But this must be done not only by themselves, but by the good advice of certain assistants appointed by the act, viz. the chancelour, treasurer, the justices of the one bench and the other, and other of the kings counsell, as many, and such as they shall think convenient. 7. *Ad capiendum*, to take a good accord of the assistants. 8. *Ad faciendum*, to make a good judgement. 9. *Ad remandandum*, to remaund before the justices, before whom the plea did depend, the tenor of the said record, together with the judgement that so shall be accorded.